

The Prevention Of Terrorism (Amendment) Act, 2003

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[An Act to amend the Prevention of Terrorism Act, 2002.](#)

[BE it enacted by Parliament in the Fifty- fourth Year of the Republic of India as follows:-](#)

[1.](#)

[Short title and commencement.-](#)

[\(1\)](#)

[This Act may be called the Prevention of Terrorism \(Amendment\) Act, 2003 .](#)

[\(2\)](#)

[It shall be deemed to have come into force on the 27th day of October, 2003 .](#)

[2.](#)

[Amendment of section 60.-](#)

[In section 60 of the Prevention of Terrorism Act, 2003 \(](#)

15 of 2002

), after sub- section (3), the following sub- sections shall be inserted, namely:-

" (4) Without prejudice to the other provisions of this Act, any Review Committee constituted under sub- section (1) shall, on an application by any aggrieved person, review whether there is a prima facie for proceeding against the accused under this Act and issue directions accordingly.(5) Any direction issued under sub- section (4),-

(i)

by the Review Committee constituted by the Central Government, shall be binding on the Central Government, the State Government and the police officer investigating the offence; and (ii) by the Review Committee constituted by the State Government, shall be binding on the State Government and the police officer investigating the offence.

(6)

Where the reviews under sub- section (4) relating to the same offence under this Act, have been made by a Review Committee constituted by the Central Government and a Review Committee constituted by the State Government, under sub- section (1), any direction issued by the Review Committee constituted by the Central Government shall prevail.

(7)

Where any Review Committee constituted under sub- section (1) is of opinion that there is no prima facie case for proceeding against the accused and issues directions under sub- section (4), then, the proceedings pending against the accused shall be deemed to have been withdrawn from the date of such direction."

3.

Repeal and saving.-

(1)

The Prevention of Terrorism (Amendment) Ordinance, 2003 (Ord. 4 of 2003), is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the Prevention of Terrorism Act, 2002 (15 of 2002

), as amended by the said Ordinance, shall be deemed to have been done or taken under the said Act, as amended by this Act. of India.

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